

26STCV08684 26STCV08684

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-27

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Case Number: 26STCV08684 Hearing Date: July 27, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Danielle Penberthy

;

Plaintiff,

vs.

Uber Technologies, Inc.

;

Defendant.

Case No.:

26STCV08684

Hearing Date:

July 27, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
for Sanctions

MOVING PARTY: Defendant Uber Technologies, Inc.

RESPONDING

PARTY: Plaintiff Danielle Penberthy

Motion for
Sanctions

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

DISCUSSION

Defendant Uber
Technologies, Inc. ("Defendant") moves the court for an order (1) awarding
monetary sanctions for Defendant and against plaintiff Danielle Penberthy
("Plaintiff") and (2) dismissing the action with prejudice pursuant to Code of
Civil Procedure sections 128.5 and 128.7.

The court finds
that Defendant has not complied with the safe harbor provisions of Code of
Civil Procedure sections 128.5 and 128.7.

Notice of a
motion for sanctions under Code of Civil Procedure section 128.7

"shall be served as provided
in section 1010 [of the Code of Civil Procedure] but shall not be filed
with or presented to the court unless, within 21 days after service of the

motion . . . the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected.” (Code Civ. Proc., § 128.7, subd. (c)(1) [emphasis added].) A motion for sanctions under Code of Civil Procedure section 128.5 pertaining to the filing of a pleading is subject to an identical safe-harbor requirement. (Code Civ. Proc., § 128.5, subd. (f)(1)(B).)

Section

1010 of the Code of Civil Procedure provides that notices may be served on parties “in the manner prescribed in this chapter,” that is, Chapter 5 of Title 14 of Part 2 of the Code of Civil Procedure. Section 1010.6, which is within Chapter 5, provides for electronic service of documents, and states that, for any electronically served document, “[a]ny period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days” subject to certain enumerated exceptions not applicable here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B) [emphasis added].) By the plain language of this provision, the right or duty of a party to withdraw or correct a pleading challenged under sections 128.5 or 128.7 is extended by two court days for electronic service.

Defendant

presents evidence that it presented Plaintiff with its Motion for Sanctions by email—that is, electronic service—on April 21, 2026. (Lozaya Decl. Ex. B [email service of motion].) Applying the extension for electronic service, Plaintiff’s last day to correct or withdraw the Complaint was 21 days plus two court days from April 21, 2026. The last day of Plaintiff’s safe harbor period was therefore not, as Defendant claims, May 12, 2026 (21 days from April 21), but May 14, 2026 (two court days later). Defendant’s motion was filed May 13, 2026, which is before the safe harbor period ended.

Thus,

because Defendant has not complied with the safe harbor provision, the court denies Defendant’s motion. (Code Civ. Proc., §§ 128.5, subd. (f)(1)(B); 128.7, subd. (c)(1), *Transcon Financial, Inc. v. Reid & Hellyer, APC* (2022) 81 Cal.App.5th 547, 551 [“the law requires strict compliance with the safe harbor provisions. [Citation.] Failure to comply with the safe harbor provision ‘precludes an award of sanctions’”] [internal citations omitted].)

ORDER

The court DENIES
defendant Uber Technologies, Inc.'s motion for sanctions.

The court orders plaintiff
Danielle Penberthy to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 27, 2026

Robert B. Broadbelt III

Judge of the Superior Court